

M/S My Car P Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 5 July 2024 · Writ-C No. 15033 of 2024 · **Writ listed after pleadings; Clause 4.4 challenge not decided.**

HEADNOTE

Without deciding delay, maintainability, or the petitioner's plea that a HV-1 to HV-2 category change and assessment were contrary to Clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005, the Allahabad High Court held that the writ required consideration and directed pleadings.

FACTUAL SUMMARY

M/S My Car P Ltd. filed a writ petition in 2024 challenging a change of electricity supply category from HV-1 to HV-2 and the resulting assessment as contrary to Clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005. The stamp reporter noted 1,309 days' delay. After an adjournment on 28 May 2024, the petition came up on 5 July 2024. The petitioner pressed the Code point; the distribution licensee objected on laches and maintainability.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing

HOLDING

The Court recorded the petitioner's plea that a change of category from HV-1 to HV-2 and the assessment were contrary to Clause 4.4 of the Uttar Pradesh Electricity Supply Code, 2005, and the licensee's objections of 1,309 days' laches and non-maintainability, held that the matter required consideration, directed a counter-affidavit and rejoinder, and listed the writ without deciding the Code or delay points. ¶ 3-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHANGE OF CATEGORY FROM HV-1 TO HV-2 AND THE ASSESSMENT WERE CONTRARY TO CLAUSE 4.4 OF THE UTTAR PRADESH ELECTRICITY SUPPLY CODE, 2005

¶ 3, 5

NOT DECIDED — WHETHER 1,309 DAYS' DELAY IN FILING THE WRIT WAS SUFFICIENTLY EXPLAINED

¶ 1, 4-5

NOT DECIDED — WHETHER THE WRIT WAS MAINTAINABLE AGAINST THE IMPUGNED ORDER

¶ 4-5